

Torts Short Form

Intentional Torts

- **Battery:** intentional harmful/offensive contact with P's person
- **Assault:** Apprehension of immediate battery
- **False Imprisonment:** An act of restrain in bounded area, unless preexisting obligation, where P knows or is harmed.
- **IIED:** Outrageous conduct + severe distress.
- **Trespass to Land:** Physical invasion on land (mistaken is not a defense).
- **Trespass to chattels:** Small interference (repair); if substantial: conversion (market value).
- **General lien:** Right to aggregate property for general balance due
- **Specific lien:** right to retain specific property improved/acted upon as security for particular charge/claim for that one item.
- **Affirmative Defenses to Intentional Torts:** Consent (objective), custom/usage, reasonable interpretation of overt conduct, Protective privileges (proper timing, reasonable belief, must retreat if possible), Necessity (land, chattels, conversion only) public & private.
- **Defamation:** Allegation/assertion of fact negatively reflecting on character trait (not opinion) against a living person that is published).
 - **Libel** (written) - no damages required.
 - **Slander: Per se:** (business/profession, moral turpitude crime, unchastity, loathsome disease, *NY gay), otherwise concrete economic harm (not mental/emotional distress).
 - **Defenses to Defamation:** Consent, Truth, Absolute Privilege (Spouses, judicial), Qualified privilege (public interest if reasonable belief and no injection of irrelevancies).
- **Invasion of Privacy:** only appropriation (use of P's name for commercial purpose, subject to "newsworthiness exception") exists in New York. Defenses: Consent & Absolute/Qualified privilege.
- **Economic torts: Fraud** (statement with scienter to induce reliance by P, reliance and damages). **Prima facie tort** (intentional infliction of pecuniary harm without justification). **Inducing a breach** of K: K, knowledge by D, D persuades/induces breach, and breach.
- **Negligence:** Duty (reasonably prudent person), subject to superior skill/knowledge or physical attributes acting under reasonable circumstances to foreseeable victims [General doctors, community; specialist - nationwide], Breach, Causation, Damages.
- **Negligence per se:** Member of class + within class of risks, unless more dangerous.
- **Negligent Infliction of Emotional Distress:** Zone of danger + subsequent physical manifestations.

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- **Duties:**
 - **Bailee:** duty of care to ensure no harm comes to bailed item, liability for exceeding scope of bailment or misdelivery (no waiver of all liability).
 - **Entrants:** Undiscovered trespasser (no duty). Discovered (expected/anticipated trespasser): Reasonable person - duty to warn of known, dangerous conditions. **Licensee:** reasonably prudent person: must protect from all known/concealed trips. **Invitee:** duty to protect from known/could have discovered through reasonable inspection conditions. *New York: "reasonable prudence under the circumstances" (not status).
 - **New York Good Samaritan Statute:** Medical professional gratuitous rescue is not liable for simple (but gross yes) negligence.
- **No Fault Insurance:** New York requires no-fault (50k minimum - personal injury only) and residual liability (tort - serious injury or basic economic loss > \$50k, 2000/mo).
- **Causation**
 - **Factual** ("but of") and Proximate ("legal") cause.
 - Multiple Defendants: "Substantial factor"
 - Unascertainable cause: Burden of proof on Defendants/jointly liable.
 - **Proximate cause:** legal (foreseeable cause): medical negligence, good samaritan, intervening protection/reaction forces, subsequent disease/accident.
 - **Res Ipsa Loquitur:** Normally associated with negligence + D's control over object/instrumentality.
- **Damages:**
 - Defendant is liable for all damages suffered by P (egg shell P). No collateral source rule in New York (reduced by sums from other sources).
- **Injunction:** Commission of tort, no adequate legal remedy, D invaded protectable right/property interest, enforceable, balance of hardships tips in favor of P. Defenses: unclean hands, laches, 1st Amendment (defamation).
- **Affirmative Defenses:**
 - Comparative fault/responsibility/negligence: P's recovery is reduced.
 - Pure comparative negligence: P always recovers, unless engaged in serious criminal activity.
 - Modified: P's fault over 50% is a bar.
- **Worker's Compensation:** ER is SL, but immune from tort. All Ees, except teachers, white collar/nonmanual Ees for non-profits, part time household Ees, and Independent K'ers. What: "arise out of employment". Medical expenses + 2/3 average weekly wage rate, or if death; unless death: death benefit + funeral expenses.
- **Strict Products Liability:** P must show (1) safer marketed product, (2) cost neutral, (3) practical(4) product not altered since it left D (presumption if ordinary channel of distribution), (5) foreseeable use. *Reasonable warning for residual risk. Defense: comparative responsibility.

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- **Vicarious liability:** ER/EE, Automobile Owner/driver (No permissive use, unless errand), In New York, vicarious liability for permissive use unless rental/rentee; landowner for independent contractor, Parents/kids - up to \$5000 in limited cases.